

DLF Universal Limited v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 1 November 2019 · Writ-C No. 61290 of 2005 · **Writ dismissed; mandamus for permanent disconnection refused for want of prescribed notice.**

HEADNOTE

Mandamus to permanently disconnect two power connections and a street-light connection was refused. Clause 4.14(g) of the U.P. Electricity Supply Code, 2005, in pari materia with the 2002 Code, requires a consumer to terminate the agreement by notice in the specified format (Annexure 4.7). The petitioner's 30 August 2002 application was not in that format. Unless the statutory procedure is followed, mandamus cannot issue. Liberty reserved to proceed in accordance with law.

FACTUAL SUMMARY

DLF Universal Limited sought a writ of mandamus directing the Executive Engineer, Electricity Distribution Division, U.P. Power Corporation Ltd., Loni, Ghaziabad, to permanently disconnect power connections Nos. 6203-549527 and 6203-549528 and street-light connection No. A/SL/4 standing in its name. It relied on an application dated 30 August 2002 submitted to that officer for the same purpose. Counsel for both sides were heard. The Court examined whether that application satisfied the Supply Code procedure for terminating the supply agreement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.14(g)

termination of agreement / permanent disconnection

HOLDING

A consumer seeking permanent disconnection must terminate the agreement by notice in the specified format (Annexure 4.7) under clause 4.14(g) of the U.P. Electricity Supply Code, 2005 (pari materia with the 2002 Code). An application not in that format does not entitle the consumer to mandamus; the writ was dismissed with liberty to proceed in accordance with law. ¶ 3-4